

where by a marriage settlement the intended wife's father settled property upon trust for the intended husband for life, and then for the intended wife for life, and then for the children of the marriage, but the trusts for the children were void for remoteness, *Kay, J.*, held that there was a resulting trust for the settlor (*i*).]

9. **Transfer of chattels.** — It was said in one case that if a man transfer *stock* or deliver *money* to another, it must proceed from an intention to benefit that other person, and therefore, although he be a stranger, it shall be *primâ facie* a gift (*j*); but if such an intention cannot be inferred consistently with the attendant circumstances, a trust will result (*k*). * And even where there is a gift of [*146] stock by transfer into the joint names of the settlor and a stranger, still in this, as in other similar cases, the settlor retains the beneficial interest for his life (*a*).

10. **Where a trust is declared of part of the estate, the trust of the residue results.** — If upon a conveyance (*b*), devise (*c*), or bequest (*d*), a trust be declared of *part* of the estate, and nothing is said as to the residue, then, clearly, the creation of the partial trust is regarded as the sole object in view, and the equitable interest undisposed of by the settlor will result to him or his representative.

11. **Partial declaration of trust distinguished from a charge.** — But upon this subject a distinction must be observed be-

[*i*] *Re Nash's Settlement*, 51 L. J. N. S. Ch. 511.]

[*j*] *George v. Howard*, 7 Price, 651, 653; and see *Batstone v. Salter*, 19 L. R. Eq. 250; 10 L. R. Ch. App. 431.

[*k*] See *Custance v. Cunningham*, 13 Beav. 363; *Fowkes v. Pascoe*, 10 L. R. Ch. App. 343.

[*a*] *Fowkes v. Pascoe*, 10 L. R. Ch. App. 343, see 351.

[*b*] *Northen v. Carnegie*, 4 Drew. 587; *Cottingham v. Fletcher*, 2 Atk. 155; *Culpepper v. Aston*, 2 Ch. Ca. 115; *Cook v. Gwavas*, cited *Roper v. Radcliffe*, 9 Mod. 187; *Lloyd v. Spillet*, 2 Atk. 160; *S. C. Barn.* 388, *per Lord Hardwicke*.

[*c*] *Sherrard v. Lord Harborough*, Amb. 165; *Marquis of Townshend v. Bishop of Norwich*, cited *Sanders on Uses*, C. 3, s. 7, div. 3; *Hobart v. Countess of Suffolk*, 2 Vern. 644; *Nash v. Smith*, 17 Ves. 29; *Wych v. Packington*, cited *Roper v. Radcliffe*, 9 Mod. 187; *Davidson v. Foley*, 2 B. C. C. 203; *Kiricke v. Bransby*, 2 Eq. Ca. Ab. 508; *Levet v. Needham*, 2 Vern. 138; *Halliday v. Hudson*, 3 Ves. 210; *Kellett v. Kellett*, 3 Dow, 248; *Hall v. Waterhouse*, W. N. 1867, p. 11; &c.

[*d*] *Robinson v. Taylor*, 2 B. C. C. 589; *Mapp v. Elcock*, 2 Phill. 793; affirmed on appeal, 3 H. L. Cas. 492; *Read v. Stedman*, 28 Beav. 495;